

Court No. - 3

Case :- WRIT - C No. - 34115 of 2021

Petitioner :- Julfkar And 3 Others

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Dileep Chandra Mathur, Anuj Laloriya

Counsel for Respondent :- C.S.C, Rajesh Yadav

Hon'ble Surya Prakash Kesarwani, J.

Hon'ble Jayant Banerji, J.

Case called out.

None appears for the petitioners. Learned Standing Counsel for the State-respondents and Sri Rajesh Yadav, learned counsel for respondent no. 2 are present.

Learned Standing Counsel and the learned counsel for the respondent no.2 raised preliminary objection with regard to maintainability of the writ petition on the ground that petitioner nos. 1 and 2 have filed Case No. 13 of 2021 and petitioner no.3 has filed Case No. 14 of 2021 before the Permanent Lok Adalat, Bijnor for setting aside the forged bill of fake recovery issued by the respondent no.2 against the petitioner and the aforesaid cases are stated to be pending.

In view of the aforesaid, this writ petition is **dismissed** at this stage. It is also left open for the petitioners to avail remedy under Para 6.5 or 6.8 of U.P. Electricity Supply Code, 2005 as the case may be.

Order Date :- 26.5.2022

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Order on Delay Condonation Application No.2 of 2022 and Recall/ Restoration Application No.3 of 2022:-

1. Heard learned counsel for the applicant-petitioners and learned Standing Counsel for the State-respondents.
2. With the consent of learned counsel for the applicant-petitioners and learned Standing Counsel, the delay is condoned and the **delay condonation application is allowed.**
3. So far as the restoration/ recall application is concerned, we find that the order dated 26.05.2022 was passed on merit with the observations that the writ petition is dismissed at this stage and it is left open for the petitioners to avail remedy under Para-6.5 or 6.8 of the U.P. Electricity Supply Code, 2005 as the case may be.
4. Now the learned counsel for the applicant-petitioners submits that the petitioners are ready and willing to deposit the entire dues in some easy installments.
5. Be that as it may, we cannot pass any order for payment in installments while hearing the restoration/ recall application. That apart, there is a provision in Para-6.14 in the U.P. Electricity Code which enables a consumer to apply for installments facility. Therefore, in the present recall/ restoration application, we cannot pass an order for payment in installment particularly when the provision exists and it is for the applicant-petitioners to avail the benefit of that provision by moving appropriate application before the competent authority.
6. For all the reasons aforesaid, **the recall/ restoration application is rejected.**

Order Date :- 12.5.2023

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